

exercise the power, and so exclude a person who desires to come in, but could not do so before the day named in the deed, the creditor will be relieved in equity (*d*).

15. Resumption by trustees of possession after parting with it. — If there be trustees for payment of debts and legacies, and subject thereto upon trust for A. for life with remainder over, and the Court has taken an account of debts and legacies, and declared A. entitled to the possession, who is put into possession accordingly, it is not competent for the trustees afterwards to make an admission of some further debt, and to resume the possession in order to discharge it (*e*).

16. Secret agreements. — If the debtor agree behind the back of the general creditors, to give an extra benefit to one particular creditor, such agreement is a fraud upon the general creditors, and illegal and void (*f*).

Secondly. As to the order of payment.

1. Creditors paid before legatees. — Where the trust is created by *will*, the direction generally is for payment of “debts and legacies.” As regards the administration of assets, creditors take precedence of legatees; but here, as both take under the will, and the testator has made no distinction, it seems upon strict principle, as was formerly held, that creditors *and legatees ought to [*524] be paid *pari passu* (*a*). However, there can be little doubt that the testator, although he may not have explicitly declared it, meant the creditors to precede, and the Courts accordingly (rather straining a point, that a man might not “sin in his grave”) have now indisputably established that creditors shall have the priority (*b*).

(*d*) *Raworth v. Parker*, 2 K. & J. 163. See *ante*, p. 522.

(*e*) *Underwood v. Hatton*, 5 Beav. 36.

(*f*) *Mare v. Sanford*, 1 Giff. 288.

(*a*) *Hixon v. Wytham*, 1 Ch. Ca. 248; *Gosling v. Dorney*, 1 Vern. 482; *Anon.* 2 Vern. 133; *Powell's case*, Nels. 202; *Wolestoncroft v. Long*, 1 Ch. Ca. 32; and see *Walker v. Meager*, 2 P. W. 552.

(*b*) *Greaves v. Powell*, 2 Vern. 248; 302, Raithby's ed.; *Bradgate v. Ridlington*, Mose. 56; 1 Eq. Ca. Ab. 141, pl. 3; *Walker v. Meager*, 2 P. W. 550; *Martin v. Hooper*, Rep. t. Hardwicke, by Ridg. 209; *Whitton v. Lloyd*, 1 Ch. Ca. 275; *Foly's case*, 2 Freem. 49; *Kidney v. Coussmaker*, 12 Ves. 154, *per* Sir W. Grant; *Peter v. Bruen*, cited 2 P. W. 551; *Lloyd v. Williams*, 2 Atk. 111, *per* Lord Hardwicke.